



INDIAN LAW & DEALMAKING · 2 AUGUST 2026

Five moves shaping the board now.

- › NCLAT shields Rolta plan from DoT claim
- › SEBI buyback rules go live August 1
- › PMLA tribunal backs ED on RCOM assets
- › India M&A surges 21.7% in H1 2026
- › SC reins in CoC commercial wisdom

SWIPE →



NCLT · NCLAT

01 / 05

NCLAT bars DoT from reopening Rolta plan

NCLAT dismissed DoT's appeal on July 31, 2026, holding implemented plans cannot be reopened by statutory creditors who failed to pursue claims in time. The tribunal upheld the Ashdan Properties ₹900 crore plan for Rolta India Ltd, where DoT's ₹469.09 crore claim saw only ₹10 lakh recovery.

THE READ

Implementation now locks in finality and deters late claims by statutory creditors. Resolution applicants gain certainty that executed plans will not be reopened on unclaimed dues.



SEBI · CAPITAL MARKETS

02 / 05

SEBI buyback rules take effect August 1

SEBI notified amended buyback regulations on July 1, 2026, effective August 1, 2026, making merchant banker appointment optional and freezing promoter holdings during buyback. Open market buybacks resumed with a cap below 15% of paid-up capital and free reserves.

THE READ

Companies can now execute leaner buybacks without mandatory merchant bankers while facing tighter promoter safeguards. Expect faster buyback announcements with compressed timelines and mandatory electronic shareholder intimation.



ED · PMLA

03 / 05

PMLA tribunal confirms ED attachment on RCOM

PMLA Adjudicating Authority confirmed ED's November 2025 provisional attachment orders against Reliance Communications Ltd and subsidiaries in April 2026, including a 3.7-acre New Delhi site and a 132-acre Thane plot. The order covers assets across Delhi, Maharashtra, Chennai, and Bhubaneswar under PAO Nos. 32, 36, and 40 of 2025.

THE READ

Creditors face a hard ceiling on recoveries as PMLA attachments crystallise ahead of IBC resolution. Enforcement risk now outweighs insolvency timelines for distressed telecom assets.



India M&A up 21.7% in H1 2026

India's M&A transaction values rose 21.7% in the first half of 2026, per Mergermarket, with Cyril Amarchand Mangaldas ranked number one by deal value and volume. The market data was disclosed by the firm on July 9, 2026 via LinkedIn citing Financial Express.

THE READ

Deal momentum persists despite global uncertainty, favouring large full-service firms with cross-border capacity. Buyers should price in premium valuations as strategic confidence remains intact.



SC · IBC

05 / 05

SC limits CoC commercial wisdom under IBC

The Supreme Court in 2026 reaffirmed that courts will not interfere in CoC business decisions but may review where illegality, procedural lapses, or jurisdictional error exist. The judgment balances creditor autonomy with judicial oversight under the IBC.

THE READ

CoC choices between competing offers remain insulated but procedural defects now invite successful challenges. Resolution professionals must tighten process to avoid post-approval judicial reversal.



THE THROUGH-LINE

These developments converge on finality versus process. NCLAT and SC rulings protect executed plans and CoC choices while allowing narrowly tailored judicial review. SEBI's streamlined buybacks and robust M&A volumes signal confidence in capital allocation. Meanwhile, ED's PMLA grip on RCOM assets underscores enforcement primacy over insolvency timelines.





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